



WHISTLEBLOWING POLICY AND PROCEDURE

COMPLIANCE AND RISK MANAGEMENT (CRM) DEPARTMENT

(Right Vision Securities (Pvt.) Limited)

Whistleblowing Regulations, 2017

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Whistleblowing Policy and Procedure

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Whistleblowing Policy and Procedure

1.TITLE

This Policy shall be called '**Whistleblowing Policy and Procedure**'. It shall come into force as and when approved by the Board of Directors (BODs) of Right Vision Securities (Pvt.) Limited (hereinafter called as 'RVSPL'/'the Company').

2.PREAMBLE:

- 2.1 The Management of Right Vision Securities (Pvt.) Limited has decided to frame Whistleblowing Policy and Procedure in compliance with **Clause 4 of Whistleblowing Regulations, 2017**. The implementation of this policy will make sure the transparency in the conduct of the Company's affairs and to meet the legal and regulatory requirements under which the Company operates. The Company is fully committed to the principles of sound corporate governance and behavior envisages fostering an environment where integrity, transparency, accountability and ethical behavior are maintained with zero tolerance on any conduct that constitutes a wrongdoing or malpractice at any level of the Company. It is a regulatory requirement to frame and implement this policy which shall become effective in order to prevent misconduct, methods for promotion of good corporate governance practices and uphold the interests of all stakeholders, internally or externally.
- 2.2 The Company recognizes that employees may be reluctant to disclose occurrence of wrongdoings at the workplace due to victimization or fear of detriment, hence the framework of this policy has been designed to motivate the employees and other stakeholders with protection to report unethical conduct, regulatory and illegal violations to the internal and external authorities for an appropriate action which falls within their ambit.
- 2.3 The management in compliance with the regulatory requirement feels to formulate such a policy which will support and motivate the employees in detecting misconduct or commodities fraud and assists in creating healthy corporate culture to gain the confidence of investors and RVSPL itself, to emerge a Future Brokerage Company as a trust worthy growing entity in the Capital and Financial market. The policy shall become effective once approved by the Board of Directors (BODs) of the Company.

3.DEFINITION:

- 3.1 **The Britannica Dictionary/Encyclopedia** defines; *"a whistle-blower is a person working at a company, government agency, or other workplace, who tells people outside the organization about criminal or unethical activity that, has been kept secret"*. The expression comes from the way people use whistles to draw attention to something bad that has happened, for example, when a referee in sports blows a whistle to indicate an illegal action by a player.
- 3.2 With the major increase in commodities fraud over the last quarter century, the U.S. Congress created the **Commodities Futures Trading Commission (CFTC)** Whistleblower Program with

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the passage of the Dodd-Frank Act. As a result of 2008 financial crisis, Dodd-Frank Wall Street Reform and Consumer Protection Act of 2010 was introduced to detect and prevent unlawful activities in financial markets. In the context of the CFTC Whistleblower Program, a CFTC *“whistleblower is someone who provides the CFTC with information regarding an occurring, ongoing, or potential violation of the Commodity Exchange Act (CEA), or the rules and regulations that support it”*.

3.3 Simply speaking in the Commodities Future Contracts trading business, the term “whistleblower” often refers to

“the activity of an individual to reveal information and reports commodities fraud, unauthorized trading, spoofing, abuse, illegal, illicit, corruption, dangerous, unethical, unsafe or immoral behavior to authorities to prevent it from continuing”.

This is done in order to safeguard the public from various harms, and to uphold transparency and justice.

Note: *It's important to note that two or more individuals acting together may become whistleblowers, but a company or other such entity is not eligible.*

4.PURPOSE:

- 4.1 The main purpose to formulate and implement this policy is to encourage whistleblowers to come forward with credible information to expose unlawful activities, fraud in commodities trading, manipulation in derivatives market, misconduct and to provide surety to protect the whistleblower from any victimization or any detriment.
- 4.2 The policy shall ensure the confidentiality and anti-retaliation protection to the whistleblower. It is expected for the concerned person to be responsible to report specific, credible and timely complaint with good faith taking into consideration all legal and regulatory requirements and minimize the possibility of encouraging unaccepted legal and regulatory risks.
- 4.3 The whistleblower is rewarded, appreciated and encouraged to reveal any suspected activities, deceptive practices or violations in future contracts trading commodities and raising a secret with well-intention by any Board Director, Committee Member, Executives and employees. The policy also aims to elucidate reporting procedure and to encourage the stakeholders of the company to reveal any wrongdoings or bad behavior in the best interests of the company.
- 4.4 For reference, it is quoted that the **Sarbanes-Oxley Act of 2002** includes provisions specifically addressing whistleblower policy. The act established protections for employees who report fraudulent activities or violations of federal securities laws, ensuring they are protected from retaliation.
- 4.5 The whistleblowing policy has been developed for multi-purposes which are summarized below:
 - (a) Encourage employees to report potential violations in preparing financial reports, misconduct or any wrongdoings and other illegal immoral activities with no fear of retaliation
 - (b) Corporate Governance to control the company under the system of rules, practices and processes
 - (c) Promote culture of compliance within the Company
 - (d) Protecting the company's and the market's integrity
 - (e) Early detection of violations

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- (f) Create awareness among employees and other stakeholders about misconduct, enabling prompt reporting and resolution of issues at early stages
- (g) Guide for stakeholders to proceed in case of noticing any wrongdoings
- (h) Transparency and fairness in business activities
- (i) To strengthen the culture of transparency and trust
- (j) Foster ethical business practices
- (k) Accountability of the violators irrespective of the employees, executives and other stakeholders
- (l) No discrimination among employees in relation to humanity and fundamental rights
- (m) Create friendly environment for better performance of employee
- (n) To treat colleagues fairly and respectfully and help them for team work

5.SCOPE OF POLICY:

In compliance with the **Whistleblowing Regulations, 2017**, the Company formulates an effective whistleblowing policy to define:

- 5.1 Coverage** of the policy; stakeholders of the company vis-à-vis lower, middle and higher level of management including executives, Directors of Board and Committees', external parties associated with the Company etc.
- 5.2 Applicability**; The Policy is applicable to the employees of the Company working at all levels including executives, senior management, the Board of Directors, Internee, Consultants, Vendors, Customers, Suppliers and all persons/parties/entities associated with the Company directly or indirectly.
- 5.3 Conduct**; The act of the whistleblower under clause 3 and the conduct of the Company under Clause 4 of the Whistleblowing Regulations, 2017 has been incorporated in the Policy to meet the regulatory requirement..
- 5.4 Responsibility** for the oversight and implementation of the Policy rests with Compliance and Risk Management (CRM) Department of the Company under the supervision of the Chief Executive Officer (CEO) and the BODs.
- 5.5** As provided in Clause 7 of the Whistleblowing Regulations, 2017 below, mainly the following matters fall under the scope of the Policy which may be considered actual or suspected:
 - 5.5.1** Non-compliance with the Rule and Regulations
 - 5.5.2** Oversight of internal control that loosen the employee to follow code of conduct
 - 5.5.3** Financial fraud or malpractices that causes loss to customers and the Company as well
 - 5.5.4** Professional wrongdoing that causes to destroy integrity culture of the Company and fade the spirit of good Corporate Governance culture
 - 5.5.5** Unethical behavior, internally or externally
 - 5.5.6** Any kind of violence of code of conduct the Company in the workplace
 - 5.5.7** Commodities trading fraud
 - 5.5.8** Conflict of interest
 - 5.5.9** Unhygienic environment likely to be endangered health/safety of employees
 - 5.5.10** Any other lack of decorum hitting shareholder's interests and assets of the Company or damage reput of the company or financial loss to the Company
 - 5.5.11** Concealment or attempt to conceal any of the above
- 5.6** The types of disclosure that does not count as whistleblowing:
 - 5.6.1** Make disclosure/Report for personal gain
 - 5.6.2** Operational matters which can be resolved internally and has no concern with misconduct

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5.6.3 Issues related with Human Resource for which a separate resolution procedures have been set up by the Company

5.7 **Mechanism of Reporting;** the reporting channels include

- (a) online submission of reporting through “Whistleblower Submission Form” available at website of the company: <http://rvspk.com>
- (b) email to the Compliance and Risk Management Department at: crmd037@rvspk.com
- (c) Verbal communication to the higher authority including immediate boss/supervisor, Human Resources (HR) Department, Compliance and Risk Management (CRM) Department with supporting evidences
- (d) Telephonically reporting at numbers: 042-35191194, 042-35191188
- (e) Letter to CEO and/or Company Secretary/HR at 74-R, GCP Society, Johar Town, Lahore
- (f) Through third person for anonymity

6. PRINCIPLES OF WHISTLEBLOWING POLICY:

The Company established the following principles to deal with the matters of the information revealed/disclosed by the whistleblower:

- (a) Right of anonymity; any reporting person who raised a concern reserves the right to hide his/her identity as secret, unless agreed otherwise
- (b) Zero tolerance policy to harass the reporter/whistleblower or any other kind of reprisal
- (c) Transparent, clear and fair dealing with the concerns raised and revealed by whistleblower in respect of the wrongdoings within the Company or misconduct of any employee and the persons associated with the Company
- (d) Whistleblower shall be protected from any victimization or detriment as a result of disclosure however, disclosure made maliciously in bad faith will not be protected under this policy
- (e) The whistleblower should be aware of and follow the hierarchy of reporting of such improper conduct or any wrongdoings.

7. FEATURES OF WHISTLEBLOWING:

The following are the basis of the policy of the company that has the main characteristics of whistleblowing:

- (a) It is an individual act of the organization
- (b) Whistleblowing process is initiated after exhausting all internal means for appropriate action to discontinue the illegal, unethical immoral behavior, commodities fraud, unauthorized trading, spoofing and other wrongdoings.
- (c) Whistleblower may face heavy costs vis-à-vis retaliation, mobbing or bullying, increase in workload, termination from services etc.
- (d) The whistleblower should reveal protected disclosure after taking into consideration the pros and cons of wrongdoings and should conduct thorough analysis of positive and negative impacts of exposing the secret information as the whistleblowing is thought a brave act of conscience which may have costs.

8.REPORTING EVENTS OR IMPROPER CONDUCT:

8.1 There are a lot of things in respect of misconduct committed or likely to be committed that may be reported by an employee, executive, director, business associates and other stakeholders of the company as a whistleblower who has knowledge of an improper conduct committed by other employee, executives, director and member of any committee. The following are the complaints or disclosures that count as whistleblowing:

- (a) Violations of rules, regulations, breach of company's code of ethics, policies and manual of the company; failure to comply with any legal obligations or regulatory requirements
- (b) Leakage of confidential data or information of company's secrets, employee and clients
- (c) Criminal offences or fraud by the employee; e.g., Corruption, bribery, kickbacks,
- (d) Violation of human rights
- (e) Improper conduct and unethical behavior e.g., Harassment, false or incorrect allegation etc.
- (f) Discriminatory behavior
- (g) Financial malpractices; e.g., fraud relating to internal controls, accounting auditing and financial matters, Fraudulent commodities trading activities, churning, malpractices etc.
- (h) Insider trading of commodities
- (i) Entering fictitious trades of commodities contracts
- (j) Mismanagement for personal benefits
- (k) Misappropriation or theft of customer funds, assets, or embezzlement
- (l) Unauthorized use of the Company's fund
- (m) Misappropriation or theft of the Company's assets
- (n) Conflict of interest and Abuse of authority and/or office
- (o) Market manipulation e.g., Churning, spoofing (artificial alter price by quick placement of similar size orders or cancellation of a bid at the best offer), fictitious transactions
- (p) Money laundering
- (q) Any form of criminal activity
- (r) Forgery; false certificates and declaration of personal information e.g., age etc.
- (s) Falsification of records; company' documents and financial instruments e.g., Cheques and securities
- (t) Deliberately concealment of any malpractice or any wrongdoings carried out within the organization
- (u) Spoofing is considered an offence; *it is an act of a trader when he places an order in the futures market with the intent to cancel it before execution just to try to falsify demand and supply in the open market targeting to artificially alter prices.* Normally similar size of orders are placed systematically and cancelled quickly to benefit others.

8.2 **Requirements:** It is imperative for the whistleblower to ensure that;

- (a) Report is being made in good faith
- (b) Allegation of improper conduct have reasonable and probable grounds with supporting evidences
- (c) Reporting must be for the best interest of the Company instead to gain personal benefits or motivation

9.CONDUCT OF WHISTLEBLOWER:

The Clause 3 of Whistleblowing Regulations, 2017 defines the conduct of the whistleblower that

- (1) Whistleblower shall:
 - (a) Act in good faith
 - (b) Have reasonable grounds to suspect that the protected disclosure indicates that the company or regulated person has contravened or intends to contravene any administrated legislation;
 - (c) Refrain from making false accusations;
 - (d) Take reasonable care to protect sensitive information and restrict disclosure to the irrelevant persons/authority only;
 - (e) Shall only disclose the details which are related with the violations;
 - (f) Ensure that the protected disclosure is accurate and complete to the best of his knowledge;
 - (g) Provide original information;
 - (h) Provide information voluntarily;
 - a. Provide complete evidence at his/her disposal to aid investigation of the issues reported; and
 - b. Provide information keeping in view the limitation as per **Regulation 11: "Proceeding against whistle blower"**; which stipulates that "The Regulations do not provide amnesty/protection to whistleblower nor preclude the Securities and Exchange Commission of Pakistan (the Commission) from brining an action against such whistleblower for his conduct in connection with violations of the applicable laws, if any.
- (2) The abusive use of the whistleblower mechanism or submission of false, fraudulent or meritless information may render whistleblower liable to disciplinary action by the company in case of an employee of the company and/or penal action by the commission in case of a company or regulated person for misstatement under the Ordinance.
- (3) Where a complaint is made in good faith and reasonably believed to be true by the complainant, no action will be taken against him/her if the allegation is found to be inaccurate or untrue upon enquiry. Provided that the Commission shall be the final authority to decide whether a complaint is made in good faith and without any fraudulent or malicious motives.

10. CONDUCT OF COMPANY OR REGULATED PERSON WITH REGARD TO WHISTLEBLOWING:

The conduct of Company or regulated persons is provided in the Clause 4 of Whistleblowing Regulations, 2017 which is reproduced hereunder:

- (1) The Board of a listed company, public sector company or regulated persons shall:-
 - (a) Formulate a whistleblowing policy;

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- (b) Communicate the whistleblowing policy to all employees and place the same on the website of the company;
 - (c) Ensure that all protected disclosure shall be evaluated objectively;
 - (d) Ensure that the whistleblowers are protected from retaliation or discrimination subsequent to a protected disclosure;
- (2) No company or regulated person shall take action to impede an individual from communicating directly with the Commission about possible violation, including enforcing or threatening to enforce, under a confidentiality agreement.
- (3) The Audit Committee shall report to the Commission, on June 30th and December 31st each year:
- a) The list of protected disclosures reported (as per Form “C”);
 - b) Outcome of the probe or enquiry conducted therein; and
 - c) Comments on the protection of the whistleblower.

11. TYPES OF WHISTLEBLOWING:

11.1 The following are the types of whistleblowing:

- Internal Whistle blowing
- External Whistleblowing
- Individual Whistleblowing
- Organizational Whistleblowing
- Cyber Whistleblowing
- Government Whistleblowing
- Anonymous Whistleblowing
- Personal Whistleblowing

11.2 Generally speaking, internal whistleblowing by an individual is the most commonly known type is considered and practiced in the corporate sector. However, introduction of some known following types are given below for information only:

- (a) **Internal Whistleblower** is an employee who identifies unethical activities or illegal misconduct in a workplace/within the company and communicates the same within the company/organization usually report to the immediate boss/manager/supervisor who will then follow reporting protocol to address the alleged misconduct within the Company/Organization as per HR manual. The reporting of such activities flows through the hierarchical structure of the company.
- (b) **External Whistleblower** is the employee of the Company who communicates an organization's illegal, unethical, immoral activities or any other type of misconduct/wrongdoings or leakage of any non-public/secret information to the persons outside of the organization. Such reporting of wrongdoings to sources outside the company such as law enforcement or any investigating body. The person to whom information is provided is neither an employee of the Company nor has any connection with the Company.
- (c) **Government Whistleblower** exposes information or activity performed within a private, public, or government organization that is deemed illegal, illicit, fraud, abuse of taxpayer funds, or unethical/ immoral activities. As the government institutions are reporting to and working under the Democratic Government, it is suspected that in such wrongdoings a

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- politician may be involved. In a democracy, politicians influenced the government owned enterprises. Government and other public sector employees may reveal such information to media and news is made public.
- (d) **Corporate Whistleblowers** can be employees, suppliers, contractors, clients or any individual or any other connected persons outside the Company/Organization who becomes aware of illegal business activities. It refers to disclosure made about wrongdoing practiced in a business like smuggling, drug dealing (manufacturing, supplying etc.) and involvement or facilitating human smuggling etc.
 - (e) **Anonymous Whistleblower** refers to an unknown person when the identity is not revealed. Though information is exposed but whistleblower is concealed.
 - (f) **Personal Whistleblower** is a person who exposes information against an individual instead to reveal the wrongdoings activities carried within the organization or in a system. Here, charges are not against the company. Hence, illegal, unethical or immoral activities are performed at the personal level. Here, the Company/Organization is not responsible of such alleged activities irrespective of the fact that the alleged person is the employee of the Company/Organization.
 - (g) **Cyber Whistleblowing** is a special type of reporting of security-related issues in the digital jurisdiction. In this digitized economy, it has become very important for every IT intensive company to keep strict check and balance to avoid any leakage of sensitive security related information. There exist laws of Cybercrimes in many jurisdictions across the world.

12. INTERNAL WHISTLEBLOWING:

The Whistleblowing Policy of the Company shall focus on Internal Whistleblowing in adherence of **Clause 5 of Whistleblowing Regulations, 2017**, reproduced hereunder:

- (1) A Whistleblower may make a protected disclosure before the Audit Committee or Board of Directors of a listed Company or Regulated Person:

Provided that if the protected disclosure is in respect of a member of the Audit Committee, such disclosure shall be made directly to the Chairman of the Board of Directors or his assigned representative.

- (2) In public sector companies, the scope of disclosure includes, but not limited to, any action constituting a misconduct:
 - (a) As defined under Rule 5 of Public Sector Companies (Corporate Governance) Rules 2013;
 - (b) Failure to observe the principles of probity and propriety, objectivity, integrity and honesty, and relationship with the stakeholders;
 - (c) Any action leading to a conflict of interests' situation; and
 - (d) Failure to conform to fitness and propriety of directors and members of senior management.

13. PROCEDURE FOR INTERNAL WHISTLEBLOWING:-

The procedure for Whistleblowing Policy of the Company shall be formulated in compliance with the **Clause 6 of Whistleblowing Regulations, 2017** which states that:

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- (1) The Board of a listed company, public sector company or regulated persons shall include the minimum, following procedure in the whistle blower policy-
 - (a) Whistle blower to report, in writing, openly or confidentiality and protected disclosure;
 - (b) To review the protected information;
 - (c) To conduct enquiry into the allegations made and review the findings of the enquiry;
 - (d) To determine the penalty or consequences for the employee or official who has been found involved in the violation of applicable laws and rule mad thereunder;
 - (e) To report the findings of the enquiry to the Chairman of the Board of the Directors of the Company;
 - (f) To protect whistleblower from retaliation as provided in Regulations 7;
 - (g) For keeping the identity of the whistleblower confidential, if it is so desired; and
 - (h) To report to the Commission in terms of Regulations 4 (stated above).

The Policy encourages the whistleblower to report any wrongdoings activities to be through hierarchical structure of the Company instead to bypass immediate boss and report directly to the higher management. However, if the issue is related with the immediate manager who is the perpetrator then report to higher official bypassing the immediate manager.

14. WHISTLEBLOWING PROCEDURE

14.1 The Company urges the employees to adhere the following mechanism to report an incident of malpractices occurring at workplace that count as whistleblowing:

- (a) All stakeholders have been provided online facility at the **Company's web** to confidentiality or anonymously report all matters that count as whistleblowing of various categories of unethical and criminal conduct.
- (b) The Company expects any employee to blow the whistle on identifying the occurrence of malpractices to his/her immediate boss/manager. If it does inconvenience to the whistleblower then the incidence of malpractices may be reported directly to Head/Manager Human Resource (HR) and or Company Secretary.
- (c) A disclosure may be made through **company's email**, telephonically or through printed matter/letter or report directly to the Securities and Exchange Commission of Pakistan (the Commission) and/or any other investigating authority/Govt. agencies provided that such disclosure is true, reasonable and revealed in good faith.
- (d) The Company encourages the whistleblower but not required/obliged to disclose his/her identity when reporting through any available mode of communication, however, the Company will appreciate if identity is revealed. In the event of the whistleblower willfully disclosing his/her identity, it shall remain undisclosed until/unless a written consent from the whistleblower is not received by the Company. Such measures are inevitable to maintain confidentiality, anonymity and to avoid retaliation against the whistleblower.
- (e) The reports received by an email, letter and/or online are marked to the respective designated officer within the Company for further action.
- (f) The Company shall not object if an employee report incidence of wrongdoings occurring within the Company and raise his/her concerns through an independent third party. The Company shall take up the matter without revealing the identity of reported person.

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- (g) The reports of allegations relating to commodities trading fraud, insider trading, market manipulation, violation of rules and regulations etc. shall be submitted to Head/Manager Compliance and Risk Management Department or the Company Secretary.
- (h) Reports regarding harassment, abuse of authority, breach of company's code of ethics, Leakage of confidential data/information, mismanagement for personal benefits, criminal offences, forgery etc. shall be submitted to Company Secretary and/or Head/Manager Human Resource (HR) Department.
- (i) Reports related to financial malpractices, unauthorized use of Company's fund and customer's fund, money laundering etc. shall be submitted to Internal Auditor/Chief Financial Officer (CFO) Accounts and Finance Department, for further action and investigation.
- (j) Whistleblowing matters related to breach of Code of Corporate Governance and other types of unethical conducts shall be reported to Chairman Board of Directors (BODs) or Company Secretary or Head HR Department.
- (k) The reports in respect of an unethical conduct, abuse of authority and/or illegal activity committed by Director, Company Secretary, CEO, Internal Auditor, Head/Manager, Compliance and Risk Management Department shall be reported to the Chairman, BODs who shall review and may refer the matter to any staff members(s) of the Company for further investigation.
- (l) The Head/Manager of Compliance and Risk Management Department shall be responsible to maintain list of complaints that count as whistleblowing submitted through any mode of communication for report rendition purpose as and when required by BODs. The summary of complaints shall exhibit detail of result of investigation, pending matters and action taken against the alleged person. The senior management is responsible to make sure that whistleblowers are protected from any kind of victimization or retaliation.
- (m) The Company shall provide an opportunity to the alleged person to be heard in his/her defense or persons against whom allegation is made and shall provide the supporting evidences for the comments in writing before investigation is concluded.
- (n) If on preliminary investigation, the allegation made against the person or persons is judged without any valid substance or merit, the allegation may be dismissed and will be informed to the alleged person or persons accordingly.
- (o) On the contrary to the point (n) above, if an allegation is proved to be valid with supporting evidences and found in good faith, the Senior Management shall proceed further after reviewing the concluded facts and an appropriate sanctions or suspension on erring staff members shall become effective.
- (p) In view of serious nature of allegations is proved and concluded as a result of proceedings in an internal investigation, whistleblowing incidences may be reported to a regulatory body or an investigating authority vis-à-vis Law Enforcement Agencies, FIA etc. for further action or prosecution.
- (q) The Company shall keep the whistleblower to be informed and update on the progress of the matter under investigation process without jeopardizing the privacy of others.
- (r) The Compliance and Risk Management Department is responsible to keep detail of record of such reported allegations either dismissed after preliminary examination or concluded as a result of investigation and current status to present the same to BODs and/or Internal Auditor.
- (s) On dissatisfactory outcome of investigation of whistleblowing allegation, the whistleblower can escalate the issue to the Chairman of BODs who can constitute a special panel to review the proceedings of allegation.
- (t) In case of any fear of retaliation or belief of subjected any harm in contravention of reported allegation, the whistleblower may present his/her complaint and reservations to the Commission. However, the whistleblower may also take up the matter on legal forum for

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prosecution on dissatisfactory process or proceedings of investigation and thereon results subject to non-resolution of his reservations/disclosures by the higher management and/or the Chairman of the BODs of the Company.

15. PROTECTION FROM RETALIATION:-

- 15.1 The Company recognizes the reality that whistleblower may face challenges and threats once revealed misconduct carried out in the organization including concerns of reprisals by those responsible for such matters. Anonymity is the most vital aspect of a whistleblower policy.
- 15.2 The Company is fully committed to protect the whistleblower from any harassment, victimization, retaliation or termination from service and other kind of mobbing/bullying, increase in workload or discriminatory behavior etc.
- 15.3 The Company ensures that any employee who decides to report any misconduct in good faith that counts as whistleblowing:
- a. Will not be penalized or suffer any adverse treatment
 - b. Will indemnify and protect from any kind of reprisal
- 15.4 The Whistleblowing Policy of the Company is complying with the **Clause 7 of Whistleblowing Regulations, 2017** as stated hereunder:
- (1) The Company, its board of directors, Auditor or management shall ensure that no whistleblower, if he/she is an employee/former employee, is subject to any adverse action but not limited to-
 - (a) Any disciplinary action;
 - (b) Dismissal suspension, harassment or intimidation;
 - (c) Transfer his or her will;
 - (d) Refusal of transfer or promotion;
 - (e) Demotion;
 - (f) withholding or suspension of his salary and/or benefit payments;
 - (g) subjecting to a term of condition of employment or retirement which is altered or kept altered to his or her advantage;
 - (h) refusal of a reference or providing with an adverse reference, from his or her employer;
 - (i) denial of appointment to any employment, profession or office;
 - (j) threatening, either directly or indirectly, with any of the actions referred above, or be otherwise adversely affecting in respect of his or her employment, profession or office, including employment opportunities and work security.
 - (2) If any whistle blower is being victimized or is likely to be victimized on the grounds that has lawfully provided information or made a disclosure to the Commission in accordance with the Regulations or assisted in any action taken by the Commission based on or related o such information, he may file an application in Form "B" before the Commission seeking remedy in the matter and the Commission may by a order in writing-
 - (a) Direct the company regarding-
 - (i) Reinstatement with the same seniority status that the individual would have had; and/or
 - (ii) Compensation to be paid to the whistleblower including previous pay, if not paid, and other benefits otherwise owed to the individual, with cost;

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- (b) Take any other action as it deems fit.

16. DIRECT REPORT TO THE COMMISSION:

There is provision for the whistleblower to report misconduct directly to the Commission instead to reveal the same to the management within the organization. **Clause 8 of Whistleblowing Regulations, 2017** states that:

- (1) The whistleblower may contact the Commission directly to reveal information on the violations through following, but without necessarily disclosing his/her name, if the whistleblower is hesitant to reveal his/her identity:
 - a. Through online submission of Form-A on Commission's website or email;
 - b. Postal address; or
 - c. Fax line
- (2) The Commission shall communicate directly with the whistleblower regarding the protected disclosure, without seeking the consent of the company. All protected disclosures made to the Commission will remain confidential if the whistleblowers desire so.

17. INACCURATE REPORTING:

The Company shall discourage the whistleblower to report incredible information against an employee, executives and Directors. In case if the employee is found to involve in malicious use of this policy, the senior management with prior permission of Chairman BODs, may initiate disciplinary action against the complainant or warn him to avoid to repeat the same in the future. Hence, whistleblower should be vigilant to avoid baseless allegations otherwise serious consequences may be faced in the form of suspension, termination, demotion, fine/penalty and/or transfer of duties etc.

18. REVIEW AND AMENDMENTS

The Compliance and Risk Management Department of the Company shall review the effectiveness, adequacy and relevance of this policy periodically. In case of amendments in the related rules and regulations are carried out, the Company shall review the policy and amend the same in conformity with the regulatory requirements. If necessity arises, the department may also review the policy from time to time recommend the proposed changes to the Internal Auditor/CEO and Board as it deems appropriate. Subsequently, the policy will be submitted to the Committee/Panel constituted by the Board for endorsement and recommendations to the Board of Directors for approval.

19. WHISTLE BLOWING CONTACT DETAILS

The Company encourages any employee who has a reasonable belief the occurrence of misconduct of serious nature, actual or suspected, that count as whistleblowing, must intimate the Company in a manner as described in this policy. The following are the channels of communications whereby whistleblowers may raise their concerns related with misconduct:-

- 19.1 Online Whistleblower submission form at website:
<http://rvspk.com>
- 19.2 Telephone # 042-35191195, 042-35191188
- 19.3 Email: crmd037@rvspl.com.pk
 - a) For disclosure against Company Secretary/CEO/ Director of the Company:
 - a. Address to Chairman at email: crmd037@rvspl.com.pk
 - b) For disclosure against Manager of the Company:
 - a. Address to CEO/Compliance Officer at email: crmd037@rvspl.com.pk
- 19.4 Mailing Address: (sealed envelope marked with "Strictly private and confidential")
74-R, GCP Society, Johar Town, Lahore

Note: *It is imperative for the whistleblower to provide credible and sufficient case specific information to substantiate the disclosure to conduct investigation effectively. Failing which investigation may be delayed and remain inconclusive.*

20. CONFIDENTIALITY STATEMENT:

- 20.1 *As explained above the anonymity is an important part of Whistle blowing Policy of the Company. It is reiterated again that the Company is fully committed to act upon anti-retaliation policy for protection of privacy and personal data.*
- 20.2 *The Company and employee shall treat disclosure in the strictest confidence in order to indemnify and protect identity.*
- 20.3 *Data received through any of the reporting channels may be used for investigation conducted for the disclosure, complaints and enquiries.*
- 20.4 *The Company shall not provide personal data for any other purpose without the consent of the relevant whistleblower unless required by any investigating authority and/or law enforcement agencies.*
- 20.5 *The Company shall not compromise the leakage of secrecy of confidential information and shall use all means to secure the personal data of the whistleblower.*

21. WHISTLEBLOWER SUBMISSION FORM

Whistleblower Submission Form

Day/Date/Time:----- (automatic-by default)

01	Detail of Alleged person/Employee:- Name:----- Designation:----- Name of Company/Branch:----- Email add:----- Contact #:-----
02	Reason to contact:----- (Drop down list of events as whistleblower) Source of information:-----
03	Disclosure statement (Detail of Reasons of concern):----- ----- ----- ----- -----

Whistleblower information:

Name:-----
Designation:-----
CNIC #:-----
Mailing Add:-----
Email add:-----
Contact #:-----

SUBMIT

SAVE

UPDATE

CANCEL

Important Note: The Company assures the whistleblower to protect the identity and shall take all necessary measures to safeguard the identity and confidentiality however; if necessity arises, such personal data may be provided to any regulatory and/or investigation authority for inquiry purpose.